UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA, Plaintiff, -against- SAMUEL BANKMAN-FRIED a/k/a "SBF", Defendant.	X : : : : : : : : : : : X	CASE NO. 22-cr- 673 (LAK) **JOINDER OF FULCRUM DISTRESSED PARTNERS LIMITED TO PETITIONS OF JOINT LIQUIDATORS AND EMERGENT FIDELITY TECHNOLOGIES LTD FOR HEARING TO ADJUDICATE THEIR CLAIMS WITH RESPECT TO FUNDS THAT ARE SUBJECT TO A PRELIMINARY ORDER OF FORFEITURE**

JOINDER OF FULCRUM DISTRESSED PARTNERS LIMITED TO VERIFIED PETITIONS OF JOINT LIQUIDATORS AND EMERGENT FIDELITY TECHNOLOGIES LTD FOR HEARING TO ADJUDICATE THEIR CLAIMS WITH RESPECT TO THEIR SHARE OF THE EMERGENT ASSETS THAT ARE SUBJECT TO A PRELIMINARY ORDER OF FORFEITURE

Fulcrum Distressed Partners Limited ("Fulcrum") joins in and fully supports the petitions filed by the Joint Liquidators of Emergent Fidelity Technologies Ltd. (the "JLs") (DKT# 447) and by Emergent Fidelity Technologies Ltd. ("Emergent") (DKT# 446) under 21 U.S.C. § 853(n)(3) (collectively, the "Petitions"), for a hearing to adjudicate the validity of their right, title and interest asserted therein with respect to (i) 55,273,469 shares of stock of Robinhood Markets Inc. (the "Robinhood Shares") and (ii) approximately $20,746,713.67 in United States currency that was held with the Robinhood Shares in a brokerage account owned by Emergent (the "Emergent Cash"), which collectively are subject of the Preliminary Order of Forfeiture entered by this Court on March 29, 2024 in the above captioned matter.

Fulcrum is the funder under a Liquidation Funding Agreement pursuant to which Fulcrum

advanced funds to the Joint Liquidators for the purpose of preserving and protecting Emergent's assets, principally comprising the Robinhood Shares and the Emergent Cash (collectively, the "Emergent Assets"), by (a) pursuing and responding to litigation in the Antigua courts and (2) commencing a case under chapter 11 of the United States Bankruptcy Code in the District of Delaware. As noted in Emergent's Petition, notwithstanding multiple court orders directing the Defendant herein to pay the JL's attorneys' fees and costs, the Defendant has not complied with such orders, making Fulcrum's funding all the more critical to the JLs' efforts to preserve and protect the Emergent Assets for the benefit of parties with interests in the assets.

Fulcrum joins in and fully supports the JL's argument that they are bona fide purchasers for value under U.S.C. § 853(n)(6)(b), and Emergent's argument that it is the owner of the Emergent Assets with superior title thereto or, alternatively, that Emergent is a bona fide purchaser for value of such assets.

Dated: New York, New York
June 14, 2024

BLANK ROME LLP

By: Rick Antonoff

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Attorneys for Fulcrum Distressed Partners Limited

VERIFICATION

Fulcrum Distressed Partners Limited, pursuant to 28 U.S.C. § 1746, declares under penalty of perjury under the laws of the United States of America that the foregoing Verified Joinder to Petitions of Joint Liquidators and Emergent Fidelity Technologies Ltd. For Hearing to Adjudicate Their Third-Party Claims with Respect to Their Share of the Emergent Assets is true and correct, to the best of its knowledge, information, and belief.

Executed: June 14, 2024

Matthew Hamilton (Jun 14, 2024 10:24 CDT)

Name: Matthew Hamilton
Title: Authorized Signatory